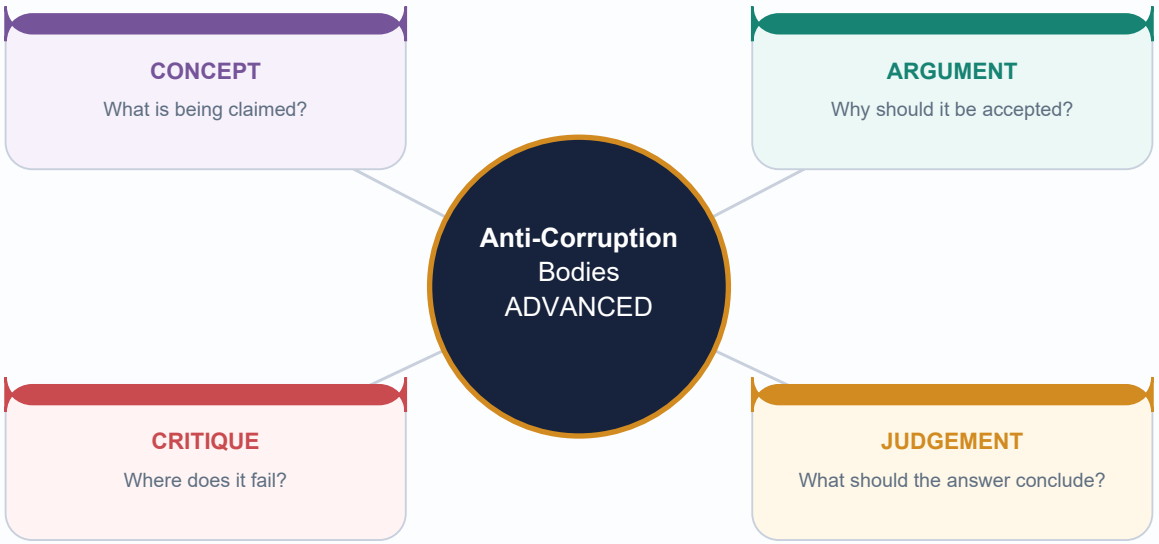
UPSC INDIAN POLITY

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: CVC-and-CBI.md + 37_CVC-and-CBI.md
Learning cards: 43



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS-II**

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Basic (foundation) · GS-II	**Dimension 2** □ = from book · □ = current link · □ = mnemonic.
Dimension 3 Advanced: optional additional vigilance-ecosystem narrative in advanced/37CVC-and-CBI.md — not required for any mark.	

STATIC THEORY

- □ = from book · □ = current link · □ = mnemonic.

- *Advanced: optional additional vigilance-ecosystem narrative in advanced/37_CVC-and-CBI.md — not required for any mark.*

MEMORY HOOK

□ = from book · □ = current link · = mnemonic.

MUST-KNOW FACTS

1. = from book · □ = current link · □ = mnemonic.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	CVC	CBI
Born	**1964** (exec resolution)	**1963** (Home Min. resolution)
Nature	**Statutory (CVC Act 2003)**	**NOT statutory** — runs on **DSPE Act 1946**
Recommended by	**Santhanam Committee**	**Santhanam Committee**
Head	Central Vigilance Commissioner + **≤2** VCs	**Director** (minimum 2-year tenure; annual extensions may take the total to 5 years)

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

Both are **anti-corruption** bodies — but **neither is constitutional**. **CVC** oversees vigilance and (only for **PC-Act 1988** cases) **superintends the CBI**. **CBI** is the Centre's main **investigating agency**, needing **state consent** to operate in states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1
Both are anti-corruption bodies — but neither is constitutional. CVC oversees vigilance and (only for PC-Act 1988 cases) superintends the CBI. CBI is

Dimension 2
 CVC panel: PM + Home Minister + LoP(LS). CBI Director panel: PM + CJI/SC judge + LoP(LS).

Dimension 3
 CBI = "caged parrot" (SC 2013 context) — executive-created organisation using DSPE Act powers; ordinary State-area operation needs consent.

STATIC THEORY

- **CVC panel:** PM + **Home Minister** + LoP(LS). **CBI Director panel:** PM + **CJI/SC judge** + LoP(LS).

- **CBI = "caged parrot"** (SC 2013 context) — executive-created organisation using DSPE Act powers; ordinary State-area operation needs consent.

MEMORY HOOK

CVC panel: PM + Home Minister + LoP(LS). CBI Director panel: PM + CJI/SC judge + LoP(LS). | CBI = "caged parrot" (SC 2013 context) — executive-created organisation using DSPE Act powers; ordinary State-area operation needs consent.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

 CVC statutory since **2003** (after **Vineet Narain** case 1997); CBI powers from **DSPE Act 1946**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 CVC statutory since 2003 (after Vineet Narain case 1997); CBI powers from DSPE Act 1946.	**Dimension 2** CVC = multi-member (CVC + ≤2 VCs), 4-yr/65, removed by President (SC inquiry).
Dimension 3 CBI Director appointed by a PM + LoP/largest-opposition-party leader + CJI/nominee panel; minimum 2-year tenure, extendable annually on committee re	**Dimension 4** CBI vs NIA: NIA → terror; CBI → corruption/economic/organised crime.

STATIC THEORY

- CVC = multi-member (CVC + ≤2 VCs), **4-yr/65**, removed by **President** (SC inquiry).

- CBI Director appointed by a **PM + LoP/largest-opposition-party leader + CJI/nominee** panel; minimum **2-year** tenure, extendable annually on committee recommendation and recorded reasons up to **5 years total**.

- **CBI vs NIA:** NIA → terror; CBI → corruption/economic/organised crime.

MUST-KNOW FACTS

1. CVC statutory since **2003** (after **Vineet Narain** case 1997); CBI powers from **DSPE Act 1946**.

2. CVC = multi-member (CVC + ≤2 VCs), **4-yr/65**, removed by **President** (SC inquiry).

3. CBI Director appointed by a **PM + LoP/largest-opposition-party leader + CJI/nominee** panel; minimum **2-year** tenure, extendable annually on committee recommendation and recorded reasons up to **5 years total**.

4. CBI vs NIA: NIA → terror; CBI → corruption/economic/organised crime.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ CBI's **"caged parrot"** autonomy debate; **withdrawal of general consent** by many states (federal friction); **2021 amendments** allow **up to 5-year** tenures for CBI & ED chiefs via yearly extensions.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

*Purpose: make this Core file independently able to answer directive-sensitive GS-II questions on the CBI's jurisdiction, State consent and federalism, on the CVC's vigilance role and its advisory limit, and on the statutory map of India's investigative and economic-intelligence agencies — without opening Advanced. The examined core is the **architecture on eight heads** (§5.4), the **consent-and-federalism mechanism** (§5.5) and the **agency/statute grid** (§5.7).*

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 5.0 Direct Mains demands owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 5.0 Direct Mains demands owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

2021 · GS-II · Q11 *— Demand (neutral rendering): the CBI's jurisdiction, the requirement of State consent, and what this reveals about the federal character of India. Directive:* ***Explain*** *(clarify the mechanism and its significance) ·* ***15 marks · 250 words****.* ***Core routing supersedes the older advanced/37_CVC-and-CBI.md pointer for this demand.*** ***Executable route:*** *(1)* ***Thesis*** *—* *because* ***police and public order are State subjects*** *(Entries 1–2,* ***State List, Seventh Schedule****), the CBI's reach into a State is conditional on consent; the withdrawal of "general consent" is therefore a* ***federal safeguard****, not mere obstruction, though it carries accountability costs. (2)* ***Legal architecture*** *— the CBI has* ***no dedicated statute****; it derives police powers from the* ***Delhi Special Police Establishment (DSPE) Act, 1946****;* ***Section 2*** *confines it to Union Territories,* ***Section 5*** *extends it to a State, and* ***Section 6*** *makes that extension conditional on the* ***State Government's consent****. (3)* ***Two kinds of consent*** *—* ***case-specific*** *consent versus* ***"general consent"*** *(standing permission for routine operation); several States have* ***withdrawn general consent****, requiring case-by-case approval. (4)* ***Federal argument for withdrawal*** *— it protects State autonomy over a constitutionally State subject and answers the "caged parrot" fear of a centrally-directed agency. (5)* ***Costs / counter*** *— it can create investigative safe havens and delay corruption and inter-State cases. (6)* ***The judicial balance (decisive)*** *— in* ***State of West Bengal v. Committee for Protection of Democratic Rights (2010)*** *a* ***Constitution Bench*** *held that a* ***High Court under Art 226 (and the Supreme Court under Art 32) can direct a CBI investigation within a State even without its consent****, and that this does* ***not*** *violate federalism; so consent binds the executive route, not the constitutional-court route. (7)* ***Verdict*** *— State consent is a genuine federal feature preserved against misuse by judicial override; the real question is the CBI's political neutrality, which a* ***statutory charter*** *would address.*

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.0 Direct Mains demands owned by this Core file

HIGH

Foundation · 5.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
CBI jurisdiction, consent, federalism	"general consent", "federal character", Explain	Police = State subject → DSPE Sections 2/5/6 → consent types → judicial override → verdict
CBI autonomy ("caged parrot")	"toothless", "reforms", Critically examine	No own statute → executive control → Vineet Narain/Common Cause insulation → statutory charter
CVC role and limits	"vigilance", "advisory", Discuss	Santhanam origin → CVC Act 2003 → superintendence-for-PC-Act only → advice not binding
Distinguish the agencies	"CBI vs ED vs SFIO vs FIU", differentiate	Map each body to its exact statute and function
Multiplicity of anti-corruption bodies	"turf war or synergy", Comment	CVC/CBI/Lokpal/ED overlap → coordination → verdict
Sanction and prosecution	"prior approval", Analyse	Section 17A/19 PC Act → superintendence split → consequences

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.1 Demand and directive map

HIGH

Foundation · 5.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The CBI's dependence on State consent is not a defect but a constitutional consequence of police being a State subject; the defect is its lack of an independent statute, which leaves it exposed to executive control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.2 QUALIFIED THESIS OPTIONS: RECALL MAP

5.2 Qualified thesis options

V

Dimension 1 The CBI's dependence on State consent is not a defect but a constitutional consequence of police being a State subject; the defect is its lack of an i	**Dimension 2** Withdrawal of general consent is a legitimate exercise of federalism whose sting is drawn by the courts' power to order a CBI probe regardless of cons
Dimension 3 The CVC illustrates the limit of the recommendatory model: statutory status and a fixed tenure cannot compensate for advice that binds no one and supe	**Dimension 4** India's investigative architecture is a patchwork of statutes and executive orders; classifying each body by its exact legal source is what separates

STATIC THEORY

- Withdrawal of general consent is a legitimate exercise of federalism whose sting is drawn by the courts' power to order a CBI probe regardless of consent — so the federal balance holds even when consent is withheld.

- The CVC illustrates the limit of the recommendatory model: statutory status and a fixed tenure cannot compensate for advice that binds no one and superintendence confined to corruption cases.

- India's investigative architecture is a patchwork of statutes and executive orders; classifying each body by its exact legal source is what separates a precise answer from a vague one.

- The recurring reform in this block is a single move — give the CBI its own statute — because almost every weakness, from the consent friction to the "caged parrot" charge, traces back to an agency that borrows its powers from a 1946 law.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.2 Qualified thesis options

HIGH

Foundation · 5.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → police=State subject + DSPE Section 6 → consent types → one case → verdict	3 units, at least one Section + one case
15	Thesis → legal architecture → consent and its withdrawal → judicial override → autonomy note → verdict	5–6 units
20	Thesis → CVC and CBI architecture → jurisdiction/consent/federalism → caged-parrot causes → agency map → reforms → graded verdict	6–8 units + a "consent vs constitutional-court power" paragraph

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.3 Mark-scaled structures

HIGH

Foundation · 5.4 Bank A — Statutory-body architecture on the eight comparable heads · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Head	Central Vigilance Commission (CVC)	Central Bureau of Investigation (CBI)
□ **Legal source**	**CVC Act, 2003** (statutory); began as an **executive resolution, 1964** on the **Santhanam Committee**'s recommendation	**No dedicated statute**; derives police powers from the **DSPE Act, 1946** (the CBI itself was set up by a **1963 executive resolution**)
□ **Appointment authority**	**President**	**Central Government** (Director, on committee recommendation)
□ **Selection committee**	**Three-member**: **PM (head) + Union Home Minister + LoP (Lok Sabha)**	**Three-member (Lokpal Act, 2013)**: **PM (chair) + LoP / leader of the single-largest opposition party in the Lok Sabha** (**DSPE Amendment Act, 2014**) + **CJI or an SC judge nominated by him**
□ **Composition**	**Multi-member**: Central Vigilance Commissioner (chair) + **not more than 2** Vigilance Commissioners	Headed by a **Director**; a police organisation; SP-and-above (except Director) appointed on a **CVC-chaired** committee
□ **Tenure**	**4 years or 65**, whichever earlier	Director: **2-year minimum security of tenure**; the **DSPE Amendment Act, 2021** permits one-year extensions on committee recommendation and recorded reasons, up to **5 years total**
□ **Removal / transfer safeguard**	By the **President** (proved misbehaviour/incapacity → **Supreme Court inquiry/report**)	Director **cannot be transferred or divested of powers without prior approval of the appointing committee**; do not mislabel this as the complete removal code
□ **Powers (binding?)**	**Civil-court powers** for inquiries; **advisory — advice NOT binding** (government records reasons to differ); superintendence over the CBI **only for Prevention of Corruption Act, 1988 offences**	Investigates and files charge sheets; but its **extension into a State needs consent (DSPE Section 6)**; prosecution needs **sanction** (**Section 17A/19, PC Act**)
□ **Appeal / enforcement limit**	Cannot compel or punish — only recommends	Cannot operate in a State without consent; **but constitutional courts can override consent** (*WB v. CPDR*, 2010)

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.4 Bank A — Statutory-body architecture on the eight comparable heads

HIGH

Foundation · 5.4 Bank A — Statutory-body architecture on the eight comparable heads · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Head	Central Vigilance Commission (CVC)	Central Bureau of Investigation (CBI)
□ **Independence safeguards**	Statutory status, fixed tenure, SC-inquiry removal, salary parity (**CVC = UPSC Chairman; VC = UPSC member**)	Director's fixed tenure and committee appointment (**Vineet Narain, 1997; Lokpal Act, 2013**) — **but no statutory charter of its own**
□ **Accountability route**	**Annual report → President → Parliament**	Under the **DoPT (Ministry of Personnel)**; superintendence **split — CVC for PC-Act cases, Central Government otherwise**

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.4 Bank A — Statutory-body architecture on the eight comparable heads

HIGH

Foundation · 5.4 Bank A — Statutory-body architecture on the eight comparable heads

GS-II Indian Polity

INTRO & ORIGIN

Analytical use: the CVC answer lives in row 7 (advisory, PC-Act-only superintendence); the CBI answer lives in rows 7–9 (consent, judicial override and the missing statute).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.4 Bank A — Statutory-body architecture on the eight comparable heads

HIGH

Foundation · 5.5 Bank B — CBI jurisdiction, State consent and federalism (routed 2021 demand)

GS-II Indian Polity

INTRO & ORIGIN

Claim: the CBI's reach is federally bounded because policing is a State function. **Evidence: police and public order are Entries 1–2 of the State List**; the CBI has no own statute and borrows from the **DSPE Act, 1946** — **Section 2** (Union Territories), **Section 5** (extension to States) and **Section 6** (State consent required). **Significance:** the CBI is not a national police force with automatic jurisdiction. **Limitation:** this makes central investigation dependent on State cooperation.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.5 BANK B — CBI JURISDICTION, STATE CONSENT AND FEDERALISM (ROUTED 2021 DEMAND): RECALL MAP

5.5 Bank B — CBI jurisdiction, State consent and federalism (routed 2021 demand)

V

Dimension 1 Claim: the CBI's reach is federally bounded because policing is a State function. Evidence: police and public order are Entries 1–2 of the State List;	**Dimension 2** Claim: "general consent" is the routine key, and withdrawing it is a federal act. Evidence: several States have withdrawn general consent, so the CBI
Dimension 3 Claim: consent does not fetter the constitutional courts. Evidence: State of West Bengal v. Committee for Protection of Democratic Rights (2010, Const	**Dimension 4** Claim: the CBI's legal foundation has been questioned but not undone. Evidence: □□ in Navendra Kumar v. Union of India (2013) the Gauhati High Court q

STATIC THEORY

- **Claim:** "general consent" is the routine key, and withdrawing it is a federal act. **Evidence:** several States have **withdrawn general consent**, so the CBI needs **case-specific** consent there. **Significance:** a constitutionally grounded check on central over-reach. **Limitation/status:** □□ the roster of States changes over time — **do not memorise an undated list/count**.

- **Claim:** consent does not fetter the constitutional courts. **Evidence:** ***State of West Bengal v. Committee for Protection of Democratic Rights*** **(2010, Constitution Bench)** held that the **HC/SC can direct a CBI probe within a State without its consent**, and this does not breach federalism. **Significance:** the federal safeguard and the fundamental-rights remedy coexist. **Limitation:** the power is the courts', not the executive's — the government cannot bypass Section 6 on its own.

- **Claim:** the CBI's legal foundation has been questioned but not undone. **Evidence:** □□ in ***Navendra Kumar v. Union of India*** **(2013)** the **Gauhati High Court quashed the 1963 executive resolution** that constituted the CBI (it did **not** strike down the DSPE Act, 1946); the **Supreme Court stayed that judgment within days**. **Significance:** it sharpened the "no statute" critique. **Limitation/status caution:** the stay means the CBI's status is **not settled against it** — never cite this as a final ruling.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.5 Bank B — CBI jurisdiction, State consent and federalism (routed 2021 demand)

HIGH

Foundation · 5.6 Bank C — CVC as the vigilance apex (origin, status and the advisory ceiling)

GS-II Indian Polity

INTRO & ORIGIN

Claim: the CVC is the statutory integrity apex, but a late one. **Evidence:** recommended by the **Santhanam Committee (1962–64)**, set up by **executive resolution in 1964**, and given **statutory status only by the CVC Act, 2003** after the Supreme Court's directions in the **Vineet Narain / Jain Hawala case (1997)**. **Significance:** its independence is a post-*Vineet Narain* judicial achievement, not an original design. **Limitation:** statutory status did not make its advice binding.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.6 BANK C — CVC AS THE VIGILANCE APEX (ORIGIN, STATUS AND THE ADVISORY CEILING): RECALL MAP

5.6 Bank C — CVC as the vigilance apex (origin, status and the advisory ceiling)

V

Dimension 1 Claim: the CVC is the statutory integrity apex, but a late one. Evidence: recommended by the Santhanam Committee (1962–64), set up by executive resolu	**Dimension 2** Claim: the CVC's control over the CBI is partial. Evidence: it exercises superintendence over the CBI only for Prevention of Corruption Act, 1988 offe
Dimension 3 Claim: the CVC recommends but cannot enforce. Evidence: it has civil-court powers for inquiries and reports to Parliament, yet its advice is not bindi	**Dimension 4** Claim: the CVC's remit extends beyond advising on cases. Evidence: it is the designated agency under the Public Interest Disclosure and Protection of

STATIC THEORY

- **Claim:** the CVC's control over the CBI is partial. **Evidence:** it exercises **superintendence over the CBI only for Prevention of Corruption Act, 1988 offences**; for all other CBI work superintendence rests with the **Central Government**. **Significance:** this split is a favourite Prelims/Mains distinction. **Limitation:** it fragments accountability for the CBI.

- **Claim:** the CVC recommends but cannot enforce. **Evidence:** it has **civil-court powers** for inquiries and reports to Parliament, yet its **advice is not binding** — the government need only record reasons to differ. **Significance:** it is a recommendatory body like the NHRC, unlike the binding Information Commission. **Limitation:** this is the structural cap on its effectiveness.

- **Claim:** the CVC's remit extends beyond advising on cases. **Evidence:** it is the designated agency under the **Public Interest Disclosure and Protection of Informers (PIDPI) Resolution, 2004** and participates in statutory appointment/oversight committees. **Significance:** it sits at the centre of the Union vigilance architecture. **Limitation/status:** the **Whistle Blowers Protection Act, 2014** must not be presented as an operational source of CVC authority unless commencement is verified; PIDPI is the current operative disclosure route taught here.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.6 Bank C — CVC as the vigilance apex (origin, status and the advisory ceiling)

HIGH

Foundation · 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Body	Exact legal source	Core function
□ **CBI**	**DSPE Act, 1946** (no dedicated statute of its own)	Corruption, economic offences and special/organised crime (non-terror); needs State consent outside UTs
□ **Enforcement Directorate (ED)**	**FEMA, 1999** + **PMLA, 2002** (+ **Fugitive Economic Offenders Act, 2018**); under the Department of Revenue, Ministry of Finance	Foreign-exchange violations and money-laundering — attachment, search, seizure, arrest
□ **Income-tax Department (CBDT)**	**Income-tax Act, 1961**; CBDT is statutory under the **Central Board of Revenue Act, 1963**	Direct-tax administration; the Investigation Wing conducts search/seizure ("raids")
□ **Serious Fraud Investigation Office (SFIO)**	**Statutory under the Companies Act, 2013 (Section 211)**; Ministry of Corporate Affairs	Investigates serious **corporate/company fraud**
□ **Financial Intelligence Unit–India (FIU-IND)**	**Set up by an executive order in 2004**; functions under the **PMLA, 2002**; reports to the Economic Intelligence Council (FM)	Receives and analyses **Suspicious Transaction Reports**; the national financial-intelligence hub
□ **CVC**	**CVC Act, 2003**	Vigilance apex; superintends the CBI for PC-Act cases; advisory
□ **NIA** (contrast)	**NIA Act, 2008**	**Terror** and specified scheduled offences

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

HIGH

Foundation · 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Claim	Named case / provision	Mechanism / significance	Limit / dated status
The ED's core PMLA powers were **upheld**	□ ***Vijay Madanlal Choudhary v. Union of India* (27 July 2022)**	Upheld the constitutional validity of the ED's powers of **search and seizure (s.17)**, **survey (s.16)**, **arrest (s.19)**, **attachment of property (s.5)** and the definition of the offence of money-laundering under **s.3**	□□ It is a **three-judge** decision on validity; it did not hold that these powers are immune from case-by-case judicial scrutiny
The **ECIR is not an FIR**	□ *Vijay Madanlal*, on the **Enforcement Case Information Report**	Held the ECIR to be an **internal ED document**, so its supply to the accused is not mandatory; communicating the **grounds of arrest** was held sufficient	□□ This is the most criticised limb — the objection is that it disables a meaningful defence at the pre-trial stage. State the holding and the criticism separately
Section 45's twin conditions for bail were upheld	□ *Vijay Madanlal* on **PMLA s.45** — bail only if the court is satisfied there are reasonable grounds for believing the accused is **not guilty** and is **not likely to commit an offence** while on bail	Effectively **reverses the ordinary presumption** at the bail stage for a category of economic offences — the sharpest available illustration in Indian law of a statutory departure from "bail is the rule"	□□ Note the history: an earlier twin-conditions provision had been struck down in ***Nikesh Tarachand Shah* (2017)** and the section was thereafter **re-enacted by Parliament**; *Vijay Madanlal* upheld the re-enacted version. Do not conflate the two rounds
ED officers are not police officers	□ *Vijay Madanlal*, on **s.50** PMLA statements	Because ED officers are not "police officers", statements recorded under s.50 are **not barred by the evidentiary rule excluding confessions to police**, and the **Art 20(3)** self-incrimination objection was rejected on the reasoning adopted	□□ This is a **statutory-classification** holding; do not extend it to say the ED is outside constitutional discipline
The accountability argument on the other side	□□ The counter-case for the regime: money-laundering is a **transnational, documentary, concealment-based** offence in which ordinary investigative tools fail, and India's design responds to **FATF** obligations; a strict bail rule is the legislature's chosen deterrent	Gives the balanced second half that a "Critically examine" demand requires — this is a **civil-liberties vs enforcement-capacity** trade-off, not a one-sided story	□□ Do **not** cite conviction rates, attachment values, case counts or FATF rating language without a dated official source

Claim	Named case / provision	Mechanism / significance	Limit / dated status
□ Current status	□ A **review petition** against *Vijay Madanlal* (led by *Karti P. Chidambaram v. Directorate of Enforcement*) was **entertained by the Supreme Court**, principally on the **non-supply of the ECIR** and the **reversal of the presumption of innocence**; reporting through **2026** records the Court taking up **maintainability** first, and the matter remains **pending and undecided as of 13 August 2026**	The examinable point is that the 2022 holding **stands as good law while under review** — which is exactly the distinction between *reconsideration* and *reversal*	□□ **Prohibited:** stating that *Vijay Madanlal* has been overruled, diluted, stayed or "referred to a larger bench" as a decided fact; predicting the review's outcome; asserting that the ECIR must now be supplied. Re-verify on the Supreme Court portal before writing any status sentence

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

HIGH

Foundation · 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

GS-II Indian Polity

INTRO & ORIGIN

Analytical use: the 2026 objective demand turns on matching a body to its **exact statute** — the traps are calling the CBI "statutory," equating the ED's PMLA/FEMA base with the CBI's DSPE base, or missing that the **SFIO is statutory (Companies Act 2013)** while the **FIU is an executive creation** operating under the PMLA.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.7 BANK D — THE INVESTIGATIVE/ECONOMIC-INTELLIGENCE ECOSYSTEM (EXACT STATUTORY SOURCES; ROUTED 2026 PRELIMS DEMAND): RECALL MAP

5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

V

Dimension 1 Analytical use: the 2026 objective demand turns on matching a body to its exact statute — the traps are calling the CBI "statutory," equating the ED's	**Dimension 2** The PMLA constitutional question — the ED's powers and their judicial status (a Core-owned unit):
Dimension 3 □□ Scope discipline: this unit carries the holding and its live status, nothing more. It reaches	**Dimension 4** no conclusion on the correctness of the judgment or the outcome of the pending review, and no answer

STATIC THEORY

- **The PMLA constitutional question — the ED's powers and their judicial status (a Core-owned unit):**

- □□ **Scope discipline:** this unit carries the **holding and its live status**, nothing more. It reaches

- **no conclusion** on the correctness of the judgment or the outcome of the pending review, and no answer

- written from it should. Use it for the *accountability-vs-due-process* argument, not for political claims

- about any investigation.

- **Answer use:** □□ this is the strongest Core anchor for the demand family *"anti-corruption and economic-offence agencies have gained power faster than accountability"*. The disciplined route is: **statutory source (PMLA 2002, FEMA 1999, DSPE 1946) → what the Court upheld → what the Court did not decide → the pending review → the institutional reform question (who supervises the ED, and through what forum)**. Pair it with §5.5 (CBI general consent and federalism) and §5.6 (the CVC's advisory ceiling) to show that the accountability gap is **structural**, not agency-specific.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.7 Bank D — The investigative/economic-intelligence ecosystem (exact statutory sources; routed 2026 Prelims demand)

HIGH

Foundation · 5.8 Institutional incentives, mechanism and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **The "caged parrot" (Supreme Court, 2013, Coalgate)** has institutional causes, not merely political ones: no own statute (it runs on the 1946 DSPE Act), executive control over the CBI's administration, funding and officer postings, the requirement of **government sanction** to prosecute, and superintendence by the government itself for non-corruption cases.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.8 INSTITUTIONAL INCENTIVES, MECHANISM AND CONSEQUENCES: RECALL MAP

5.8 Institutional incentives, mechanism and consequences

V

Dimension 1 □□ The "caged parrot" (Supreme Court, 2013, Coalgate) has institutional causes, not merely political ones: no own statute (it runs on the 1946 DSPE Ac	**Dimension 2** □□ The consent regime gives State governments a lever that can shield or expose officials depending on which party controls the State and the Centre —
Dimension 3 □□ Multiplicity (CVC, CBI, Lokpal, ED, SFIO, FIU) creates overlap and turf friction; a corruption case can trigger parallel CBI, ED and CVC action, wh	

STATIC THEORY

- □□ **The consent regime** gives State governments a lever that can shield or expose officials depending on which party controls the State and the Centre — the same instrument reads as "federal safeguard" or "obstruction of justice" with the political alignment.

- □□ **Multiplicity (CVC, CBI, Lokpal, ED, SFIO, FIU)** creates overlap and turf friction; a corruption case can trigger parallel CBI, ED and CVC action, which is why coordination and a clear CBI charter are recurrent reform demands.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.8 Institutional incentives, mechanism and consequences

HIGH

Foundation · 5.9 Criticism, counter-argument, variation and implementation constraints

GS-II Indian Polity

INTRO & ORIGIN

Autonomy critique: □□ the CBI's lack of a statute and its administrative dependence on the executive are the structural roots of the "caged parrot" charge; the CVC's non-binding advice similarly limits vigilance.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.9 CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS: RECALL MAP

5.9 Criticism, counter-argument, variation and implementation constraints

V

Dimension 1
Autonomy critique: □□ the CBI's lack of a statute and its administrative dependence on the executive are the structural roots of the "caged parrot" ch

Dimension 2
Counter: □□ post-Vineet Narain insulation (fixed Director tenure, committee appointment, Common Cause protection against arbitrary divestiture) and ju

Dimension 3
Federal variation: □□ withdrawal of general consent is concentrated in States governed by parties opposed to the Union, so the "federalism vs central

Dimension 4
Implementation constraints: □□ Section 17A of the PC Act (2018) now requires prior approval before investigating decisions taken in official functions

STATIC THEORY

- **Counter:** □□ post-*Vineet Narain* insulation (fixed Director tenure, committee appointment, *Common Cause* protection against arbitrary divestiture) and judicial oversight of CBI probes show real, if incomplete, safeguards.

- **Federal variation:** □□ withdrawal of general consent is concentrated in States governed by parties opposed to the Union, so the "federalism vs central over-reach" debate is alignment-dependent, not constant.

- **Implementation constraints:** □□ **Section 17A of the PC Act (2018)** now requires **prior approval** before investigating decisions taken in official functions, adding a consent-like hurdle to corruption probes; reform proposals for a dedicated **CBI Act** (2nd ARC, parliamentary panels) remain **proposals, not law**.

- **Multiplicity vs coordination:** □□ a single corruption matter can trigger **parallel CVC, CBI and ED** action (plus the Lokpal's superintendence over referred cases), so the debate is "synergy or turf war?" — the coordinating design is that the **CVC superintends the CBI for PC-Act cases** and the **Lokpal directs referred investigations**, but overlapping mandates and separate statutes leave genuine friction that a unified charter would reduce.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.9 Criticism, counter-argument, variation and implementation constraints

HIGH

Foundation · 5.10 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Consent/federalism verdict: "State consent under Section 6 of the DSPE Act is a real federal feature, but *WB v. CPDR* (2010) keeps the balance by letting constitutional courts order a CBI probe without consent — so withdrawal limits the executive, not the judiciary."

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.10 VERDICT SCAFFOLDS: RECALL MAP

5.10 Verdict scaffolds

V

Dimension 1 Consent/federalism verdict: "State consent under Section 6 of the DSPE Act is a real federal feature, but WB v. CPDR (2010) keeps the balance by letti	**Dimension 2** Autonomy verdict: "The CBI is a caged parrot by construction, not accident: an agency without its own statute, dependent on the executive for administ
Dimension 3 CVC verdict: "Statutory status and a fixed tenure gave the CVC independence but not authority; advice that binds no one and superintendence limited to	

STATIC THEORY

- **Autonomy verdict:** "The CBI is a caged parrot by construction, not accident: an agency without its own statute, dependent on the executive for administration and sanction — a dedicated CBI Act is the structural fix."

- **CVC verdict:** "Statutory status and a fixed tenure gave the CVC independence but not authority; advice that binds no one and superintendence limited to corruption cases cap what a vigilance apex can achieve."

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.10 Verdict scaffolds

HIGH

Foundation · 5.11 Prelims close-option distinctions (answers the routed 2026 objective demand) · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
CBI statutory?	**No** — the CBI has **no dedicated statute**; it runs on the **DSPE Act, 1946**
CVC statutory?	**Yes** — **CVC Act, 2003** (began as a 1964 executive resolution)
ED's legal base	**FEMA 1999 + PMLA 2002** (not the DSPE Act); under the Ministry of Finance
SFIO's legal base	**Statutory under the Companies Act, 2013 (Section 211)**; Ministry of Corporate Affairs
FIU-IND's legal base	**Executive order (2004)**, functioning under the **PMLA, 2002** — not a dedicated statute
CBI vs NIA	CBI → corruption/economic/special crime (**DSPE Act**); NIA → **terror** (**NIA Act, 2008**)
CVC selection panel	**PM + Home Minister + LoP (Lok Sabha)** — the **CJI is not** on it
CBI Director panel	**PM + LoP/largest-opposition leader + CJI/SC judge** (Lokpal Act, 2013)

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.11 Prelims close-option distinctions (answers the routed 2026 objective demand)

HIGH

Foundation · 5.11 Prelims close-option distinctions (answers the routed 2026 objective demand) · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
CVC–CBI superintendence	CVC only for **PC-Act 1988** cases; **Central Government** for the rest
Who can order a CBI probe without State consent	**The High Court / Supreme Court** (*WB v. CPDR*, 2010) — not the Central Government
CVC structure	**Multi-member** — Central Vigilance Commissioner + **not more than 2** Vigilance Commissioners (not single-member)
CVC salary parity	CVC = **UPSC Chairman**; Vigilance Commissioner = **UPSC member**

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.11 Prelims close-option distinctions (answers the routed 2026 objective demand)

HIGH

Foundation · 5.12 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 CVC = statutory (2003); CBI = not statutory (DSPE Act, 1946). Get this contrast right — it is the commonest trap. The **DSPE Amendment Act, 2021** allows CBI/ED Director extensions **up to five years via annual extensions** — the base minimum tenure is still **2 years**; do not state a flat 5-year term. Superintendence over the CBI is **split**: CVC for PC-Act 1988 offences, **Central Government** otherwise.

INTRO & ORIGIN

 ***WB v. CPDR* (2010)** lets constitutional courts order a CBI probe **without State consent** — do not say State consent is absolute.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.12 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

5.12 Factual-risk and current-status controls

V

Dimension 1 WB v. CPDR (2010) lets constitutional courts order a CBI probe without State consent — do not say State consent is absolute.	**Dimension 2** Navendra Kumar (2013, Gauhati HC) quashed the 1963 resolution, not the DSPE Act; the SC stayed it — never cite it as a final holding that the CBI i
Dimension 3 Do not fabricate the list/number of States that have withdrawn general consent; it changes over time.	**Dimension 4** PMLA / Vijay Madanlal Choudhary — status controls, dated 13 August 2026. The 27 July 2022 judgment upheld the ED's PMLA powers of search/seizure (

STATIC THEORY

- □□ ***Navendra Kumar* (2013, Gauhati HC)** quashed the **1963 resolution**, not the DSPE Act; the **SC stayed it** — never cite it as a final holding that the CBI is illegal.

- □□ Do not fabricate the list/number of States that have withdrawn general consent; it changes over time.

- □ **PMLA / *Vijay Madanlal Choudhary* — status controls, dated 13 August 2026.** □ The **27 July 2022** judgment **upheld** the ED's PMLA powers of **search/seizure (s.17), survey (s.16), arrest (s.19), attachment (s.5)** and the **s.3** offence definition; held the **ECIR is an internal document** not required to be supplied (grounds of arrest suffice); **upheld the re-enacted s.45 twin conditions** for bail; and held **ED officers are not police officers** for the purpose of **s.50** statements. □□ Keep the two rounds of s.45 apart — an earlier version was struck down in ***Nikesh Tarachand Shah* (2017)** and Parliament re-enacted it. □ A **review petition** (*Karti P. Chidambaram v. Directorate of Enforcement*) is **pending and undecided**, with the Court taking **maintainability** first; the 2022 holding therefore **remains good law while under review**. **Prohibited:** "overruled", "diluted", "stayed", "referred to a larger bench" as decided facts; predicting the review outcome; asserting the ECIR must now be supplied; quoting conviction rates, attachment values, case counts or FATF-rating language without a dated official source. Re-verify on the Supreme Court portal.

- □ **Section 17A of the PC Act (2018)** requires prior approval to investigate official-function decisions; □□ its constitutionality is under judicial scrutiny (a Supreme Court split verdict was referred to a larger bench, 2026) — state the requirement, flag the challenge, do not pre-judge it.

- □ The CBI Director's selection committee (**PM + LoP/largest-opposition leader + CJI/SC judge**) is under the **Lokpal Act, 2013**; do not confuse it with the CVC's committee (**PM + Home Minister + LoP**).

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2026 -→

MUST-KNOW FACTS

1. *WB v. CPDR* (2010) lets constitutional courts order a CBI probe **without State consent** — do not say State consent is absolute.

2. □ PMLA / *Vijay Madanlal Choudhary* — status controls, dated 13 August 2026. The **27 July 2022** judgment **upheld** the ED's PMLA powers of **search/seizure (s.17), survey (s.16), arrest (s.19), attachment (s.5)** and the **s.3** offence definition; held the **ECIR is an internal document** not required to be supplied (grounds of arrest suffice); **upheld the re-enacted s.45 twin conditions** for bail; and held **ED officers are not police officers** for the purpose of **s.50** statements. □□ Keep the two rounds of s.45 apart — an earlier version was struck down in ***Nikesh Tarachand Shah* (2017)** and Parliament re-enacted it. □ A **review petition** (*Karti P. Chidambaram v. Directorate of Enforcement*) is **pending and undecided**, with the Court taking **maintainability** first; the 2022 holding therefore **remains good law while under review**. **Prohibited:** "overruled", "diluted", "stayed", "referred to a larger bench" as decided facts; predicting the review outcome; asserting the ECIR must now be supplied; quoting conviction rates, attachment values, case counts or FATF-rating language without a dated official source. Re-verify on the Supreme Court portal.

3. The CBI Director's selection committee (**PM + LoP/largest-opposition leader + CJI/SC judge**) is under the **Lokpal Act, 2013**; do not confuse it with the CVC's committee (**PM + Home Minister + LoP**).

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 5.12 Factual-risk and current-status controls

HIGH

Foundation · 2026 PYQ Integration

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2026	Prelims GS-I	63	Government investigative and economic-intelligence bodies and their statutory functions	Objective question; provisional 2026 Set-A key present locally, answer not inferred	Provisional 2026 Set-A key present locally (Ans-2026-GS1-Provisional); key is provisional - no answer letter recorded or inferred here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 2026 PYQ Integration

HIGH

Foundation · 2026 PYQ Integration

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 2026 PYQ Integration.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *2026 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2026.md.* ***Answer-key rule:*** *The 2026 Prelims and CSAT Set-A keys held locally are* ***provisional****; no option or answer is recorded or inferred in this integration.* ***Year represented:*** *2026* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *1*

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → 2026 PYQ Integration

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Government investigative and economic-intelligence bodies and their statutory functions

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Government investigative and economic-intelligence bodies and their statutory functions	**Dimension 2** This block integrates the 2026 examinable demand and paper metadata. It is kept separate from the 2018-2023 and 2024-2025 blocks and does not convert
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2026 -->	**Dimension 4** less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

STATIC THEORY

- This block integrates the 2026 examinable demand and paper metadata. It is kept separate from the 2018-2023 and 2024-2025 blocks and does not convert a provisionally-keyed, answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2026 -->

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2021	GS-II	11	CBI jurisdiction, State consent and the federal character of India	Explain · 15 marks · 250 words	Cross-cutting ; investigative -agency source, federal consent and consolidated institutional classification	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2021* ***Paper(s):*** *GS-II* ***Routed question demands:*** *1*

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

CBI jurisdiction, State consent and the federal character of India

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 CBI jurisdiction, State consent and the federal character of India	**Dimension 2** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -—›	

STATIC THEORY

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -—›

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Legal identity: *CVC is statutory under the Central Vigilance Commission Act, 2003. CBI is an organisation constituted by executive resolution on 1 April 1963; the Delhi Special Police Establishment Act, 1946 supplies its core police powers. Neither is a constitutional body.* ***Current leadership, checked 5 September 2026:*** *A S Rajeev, a serving Vigilance Commissioner, is authorised to act as Central Vigilance Commissioner from 3 August 2026; Praveen Vashista is the other officially identified Vigilance Commissioner. Praveen Sood continues as CBI Director under the dated extension through 24 May 2027.* ***CVC appointment and tenure:*** *the President appoints the Central Vigilance Commissioner and up to two Vigilance Commissioners after recommendation by the PM-Home Minister-LoP committee. The term is four years or age sixty-five, whichever is earlier. Removal for proved misbehaviour/incapacity uses a Supreme Court inquiry; direct statutory grounds remain separate.* ***CVC jurisdiction:*** *section 8 functions include specified superintendence over DSPE corruption investigations, vigilance administration, inquiry or investigation on references/complaints, review of investigation progress and prosecution-sanction applications, and advice. Directions cannot require disposal of a particular case in a particular manner.* ***CVO and disciplinary boundary:*** *Central Vigilance Officers connect prevention, complaint scrutiny and departmental action. CVC advice informs the competent disciplinary authority but is not a criminal judgment or universally binding adjudication.* ***CBI Director:*** *appointment follows DSPE section 4A through the PM-LoP-CJI/nominee committee after the statutory eligibility panel. The minimum tenure is two years. The 2021 amendment permits recorded public-interest extensions one year at a time up to five years in aggregate; five years is not automatic. Transfer requires committee consent.* ***Territorial jurisdiction:*** *sections 3 and 5 identify notified offences and extension of DSPE powers; section 6 ordinarily requires State consent. General consent can be withdrawn prospectively, specific consent remains possible, and constitutional courts retain exceptional Articles 32/226 power to direct a CBI investigation without consent.* ***Superintendence split:*** *CVC superintends DSPE investigation of specified Prevention of Corruption Act offences; the Central Government superintends other DSPE matters. Lokpal has bounded superintendence for Lokpal-referred cases.* ***Case controls:*** *Vineet Narain created the independence architecture; Committee for Protection of Democratic Rights (2010) preserves constitutional court power; Kazi Lhendup Dorji addresses validly begun investigations after consent withdrawal; Fertico is fact-specific; Alok Kumar Verma protects the statutory Director process; Jaya Thakur upheld the conditional extension framework.* ***PYQ firewall:*** *the verified 2021 GS-II federal-consent demand and the controlled 2026 objective institutional-matching demand are owned here. No current State-consent count or caseload statistic is frozen.*

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 59–60 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/CVC-and-CBI.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 59–60 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/CVC-and-CBI.md.*

- □□ **Note: Neither CVC nor CBI is a constitutional body.** CVC = **statutory since 2003**; CBI = **not even

- statutory **— it runs on the** Delhi Special Police Establishment (DSPE) Act, 1946**.

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□

GS-II Indian Polity

INTRO & ORIGIN

□ Apex integrity/anti-corruption body of the Centre.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□: RECALL MAP

PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□

V

Dimension 1 □ Apex integrity/anti-corruption body of the Centre.	**Dimension 2** □ Established 1964 by an executive resolution, on the recommendation of the Santhanam Committee on
Dimension 3 Prevention of Corruption (1962–64).	**Dimension 4** □ Originally neither constitutional nor statutory → given statutory status by the CVC Act, 2003

STATIC THEORY

- □ Established **1964** by an **executive resolution**, on the recommendation of the **Santhanam Committee on

- Prevention of Corruption (1962–64)**.

- □ **Originally neither constitutional nor statutory** → given **statutory status by the CVC Act, 2003**

- (□□ following the SC's **Vineet Narain / Jain Hawala case, 1997** directions).

MUST-KNOW FACTS

1. Apex integrity/anti-corruption body of the Centre.

2. Established **1964** by an **executive resolution**, on the recommendation of the **Santhanam Committee on

3. Originally neither constitutional nor statutory → given **statutory status by the CVC Act, 2003**

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□

HIGH

Advanced · Composition □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Structure	**Multi-member**: Central Vigilance Commissioner (**chairperson**) + **not more than 2** Vigilance Commissioners
□ Appointed by	**President**, on a **3-member committee**: **PM (head)** + **Union Home Minister** + **LoP (Lok Sabha)**
□ Term	**4 years** or **65 years**, whichever earlier; **no further govt employment** after
□ Removed by	**President** (proved misbehaviour/incapacity → **SC inquiry**)
□ Salary parity	CVC = **UPSC Chairman**; Vigilance Commissioner = **UPSC member**

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Composition □

HIGH

Advanced · Powers & functions □

GS-II Indian Polity

INTRO & ORIGIN

Superintendence over the CBI (DSPE) *only* for **Prevention of Corruption Act, 1988** offences (□ NOT all CBI work).

Advanced learning layer: concepts → constitutional detail → UPSC application.

POWERS & FUNCTIONS □: RECALL MAP

Powers & functions □

V

Dimension 1 Superintendence over the CBI (DSPE) only for Prevention of Corruption Act, 1988 offences (□ NOT all CBI work).	**Dimension 2** Inquire or cause inquiry into complaints concerning the public-servant categories covered by section 8 and applicable rules/orders; do not reduce the
Dimension 3 Whistle-blower designated agency under the operative PIDPI Resolution (2004). The Whistle Blowers Protection Act, 2014 should not be treated as commen	**Dimension 4** Chairs the committee recommending the ED Director & (post-Lokpal Act 2013) CBI officers SP-and-above (except Director).

STATIC THEORY

- Inquire or cause inquiry into complaints concerning the public-servant categories covered by section 8 and applicable rules/orders; do not reduce the statutory coverage to one shorthand rank list.

- **Whistle-blower** designated agency under the operative **PIDPI Resolution (2004)**. The **Whistle Blowers Protection Act, 2014** should not be treated as commenced authority without an official commencement control.

- Chairs the committee recommending the **ED Director** & (post-Lokpal Act 2013) CBI officers **SP-and-above (except Director)**.

- **Civil-court powers**; **annual report** → **President** → **Parliament**. □□ Advisory — advice **not binding** (govt must record reasons if it disagrees).

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Powers & functions □

HIGH

Advanced · PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□

GS-II Indian Polity

INTRO & ORIGIN

□ Set up **1963** by a **Home Ministry resolution**; recommended by the **Santhanam Committee**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□: RECALL MAP

PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□

V

Dimension 1 □ Set up 1963 by a Home Ministry resolution; recommended by the Santhanam Committee.	**Dimension 2** □ □ NOT a statutory body — derives powers from the Delhi Special Police Establishment (DSPE) Act, 1946.
Dimension 3 □ Main investigating agency of the Centre; assists the CVC & Lokpal.	**Dimension 4** □ CBI vs NIA: NIA (post-2008 Mumbai attack) → terror; CBI → corruption, economic & organised crime (non-terror).

STATIC THEORY

- □ □ **NOT a statutory body** — derives powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**.

- □ Main **investigating agency** of the Centre; assists the **CVC & Lokpal**.

- □ **CBI vs NIA:** NIA (post-2008 Mumbai attack) → **terror**; CBI → **corruption, economic & organised crime (non-terror)**.

MUST-KNOW FACTS

1. Set up **1963** by a **Home Ministry resolution**; recommended by the **Santhanam Committee**.

2. □ **NOT a statutory body** — derives powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**.

3. Main **investigating agency** of the Centre; assists the **CVC & Lokpal**.

4. CBI vs NIA: NIA (post-2008 Mumbai attack) → **terror**; CBI → **corruption, economic & organised crime (non-terror)**.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□

HIGH

Advanced · Director of CBI — appointment (post-Lokpal Act 2013) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Appointed by	Central Govt on a **3-member committee**: **PM (chair)** + **LoP (Lok Sabha)** + **CJI or an SC judge nominated by him**
□ Tenure	Minimum **2-year** tenure; annual extensions on committee recommendation and recorded reasons may take total tenure to **5 years** under the 2021 amendment
□ No LoP?	**DSPE (Amendment) Act, 2014** → leader of the **single-largest opposition party** sits instead

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Director of CBI — appointment (post-Lokpal Act 2013) □

HIGH

Advanced · Director of CBI — appointment (post-Lokpal Act 2013) □

GS-II Indian Polity

INTRO & ORIGIN

□□ **DSPE (Amendment) Act, 2021** — CBI Director's 2-yr term can be **extended annually up to a total of 5 years** (3 one-year extensions) — criticised for enabling govt influence.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Director of CBI — appointment (post-Lokpal Act 2013) □

HIGH

Advanced · □ PMLA & the Enforcement Directorate (ED)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

PMLA/ED area	UPSC takeaway
Attachment	Property linked to proceeds of crime can be provisionally attached subject to statutory process.
Arrest/search/seizure	Upheld in 2022 within PMLA's special framework.
Bail	Twin conditions under Sec 45 make bail more stringent.
Oversight debate	Due process, ECIR disclosure and political misuse remain contested.

MAINS ANGLE

STUDY LINK
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → □ PMLA & the Enforcement Directorate (ED)

HIGH

Advanced · □ PMLA & the Enforcement Directorate (ED)

GS-II Indian Polity

INTRO & ORIGIN

□ Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ PMLA & THE ENFORCEMENT DIRECTORATE (ED): RECALL MAP

□ PMLA & the Enforcement Directorate (ED)

V

Dimension 1 □ Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap.	**Dimension 2** □ Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.
Dimension 3 □ PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches property, searches, seizes and arrests under the Act.	**Dimension 4** □ In Vijay Madanlal Choudhary v. Union of India (2022), the Supreme Court upheld major ED/PMLA powers including arrest, attachment, search/seizure and

STATIC THEORY

- □ Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.

- □ PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches property, searches, seizes and arrests under the Act.

- □ In *Vijay Madanlal Choudhary v. Union of India* (2022), the Supreme Court upheld major ED/PMLA powers including arrest, attachment, search/seizure and twin bail conditions.

- □ The Court treated the ECIR as an internal ED document, not equivalent to an FIR for automatic supply.

- □□ ED's expanding role creates a recurring Mains theme: anti-money-laundering effectiveness vs civil liberties/federal misuse concerns.

- □ Trap: ED is not the CBI; PMLA is a special money-laundering law with a distinct procedure.

MEMORY HOOK

Trap: ED is not the CBI; PMLA is a special money-laundering law with a distinct procedure.

MUST-KNOW FACTS

1. Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.

2. Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → □ PMLA & the Enforcement Directorate (ED)

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: CVC/CBI are constitutional

CORRECT: CVC statutory (2003); CBI not even statutory (DSPE Act 1946).

WRONG: CVC is a single-member body

CORRECT: multi-member (CVC + up to **2** Vigilance Commissioners).

WRONG: CVC controls all of the CBI

CORRECT: superintendence over CBI **only for PC-Act 1988** offences; rest → **Central Govt**.

WRONG: The CBI Director selection panel is the same as the CVC's

CORRECT: CBI panel has the **CJI/SC judge** (CVC panel has the **Home Minister**).

WRONG: CBI can investigate anywhere freely

CORRECT: needs **state consent** (DSPE Act); many states **withdrew "general consent."**

WRONG: CVC's advice is binding

CORRECT: advisory (govt records reasons to differ).

WRONG: CVC term is 5 years

CORRECT: 4 years / 65.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □□ **"Caged parrot"** — SC's 2013 remark (Coalgate) on the CBI's lack of autonomy; recurring **CBI independence/reform** debate. □ **Withdrawal of "general consent"** — several states have withdrawn or altered standing consent, requiring case-specific consent; the roster changes over time, so avoid memorising an undated count/list.

INTRO & ORIGIN

□ **DSPE (Amendment) Act 2021 & CVC (Amendment) Act 2021** — enabled **up to 5-year** tenures for CBI & ED Directors via annual extensions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ Demand for a **statutory charter / separate CBI Act** to insulate it from executive control (2nd ARC, Parliamentary panels).

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The CBI is a caged parrot." Examine the structural causes of its lack of autonomy and suggest reforms. Withdrawal of general consent to the CBI: a symptom of eroding cooperative federalism? Multiplicity of anti-corruption bodies (CVC, CBI, Lokpal, ED) — synergy or turf war?

STUDY LINK

CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE → Mains angles

End of Register Notes - UPSC Agent / Copilot CLI